

		not find these factors outweigh the lack of diligence and lack of necessity. Accordingly, the motion is DENIED. <i>SCE is ordered to give notice of this ruling.</i>
4.	The Eli Home, Inc. v. Tatarian et al. 24-1370984	Defendant/Cross-Complainant Sarkis Tatarian Trustee Under the 2021 Sarkis Tatarian Separate Property Revocable Trust's ("Sarkis") Motion to Compel Payment of Arbitration Deposits ("Motion") is GRANTED in part and DENIED in part. Sarkis requests the court issue a ruling determining proper apportionment of arbitration deposits so the parties can proceed with arbitration. Sarkis argues the deposits should be apportioned in a pro rate amount equally among the five parties participating in the arbitration, which would result in each paying 1/5 of the deposit. (<i>Civ. Proc. Code § 1284.2.</i>) The subject arbitration agreement is silent as to the division of the expenses and fees. Defendants Marcus & Millichap Real Estate Investment Services, Inc., Arash Mobin, and Adam P. Christofferson ("MMRE" together) argue the fees should be apportioned as to 1/3 the amount for MMRE, Sarkis, and Eli Home, Inc. The latter has not responded to this Motion. MMRE put forth the rules/practices of the arbitration company ADR Services, Inc. ("ADR"), which is overseeing the arbitration. ADR's "standard practice is to allocate fees by firm (or aligned party group), rather than by individual parties. . ." (Borden Dec. ¶ 3, Ex. A.) Both the first amended complaint ("FAC") and cross-complaint ("XC") indicate Mobin was the real estate agent/broker associate with Millichap as the broker and Christofferson as the broker of record on the underlying real estate transaction. (FAC ¶¶ 23-24, 39; XC ¶¶ 45, 49-50, 57.) Mobin and Christofferson are alleged as agents of Millichap and thus the liability appears to be the same. (<i>Bus. & Prof. Code §§ 10010.5 and 10032.</i>) MMRE are also represented by the same counsel. As the allegations against MMRE, liability, and counsel are the same, and as the ADR practice is division amongst the aligned groups, the court finds the 1/3 allocation to be appropriate. Although MMRE argues the Motion should be denied outright, this may lead to ongoing issues related to starting arbitration. As such, the court will issue its ruling covering the issues. The motion is GRANTED as to the court issuing a ruling regarding apportionment of the fees but DENIED as to the 1/5 allocation. The court finds the 1/3 allocation is appropriate for the initial deposits. The court also notes that this order only covers apportionment for the initial arbitration deposits to permit arbitration to proceed. The court leaves ultimate apportionment of arbitration fees and costs for the arbitrator to determine at his discretion. <i>Sarkis to give notice.</i>